



File No.: EXP202414053

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RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 27, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 27, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against the GENERAL DIRECTORATE OF POLICE (hereinafter, the respondent) for not having duly attended to their right of access.

The complainant states that they requested access to their personal data in relation to an intervention report, receiving a response dated August 20, 2024, which is limited to communicating some data related to the intervention report ("***REFERENCE.1, from the Citizen Attention Group of ***LOCALITY.1").

They express their disagreement with this response because they have not been granted access to their personal data or the content of the record.

The complainant provides a copy of the response from the respondent dated August 20, 2024:

"In response to your request dated August 8, 2024, with entry registration number XXXX, through which you exercise the right of ACCESS to those personal data to which you refer in your request and in the possession of the data controller of the file "INTERVENTION REPORTS" of the General Directorate of Police, the following is communicated:

A.A.A.

DNI/NIE: ***NIF.1

DATA CONCERNING THE INTERESTED PARTY

In accordance with Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions, your request refers to the following data in the INTERVENTION REPORTS processing:

You have the following records:

- ***REFERENCE.1, from the Citizen Attention Group of ***LOCALITY.1.

1. In accordance with the provisions of Article 24 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions, the data controller may agree to restrict the right of access, rectification, deletion of personal data, or limitation of its processing, in those cases where it is necessary and proportional, in order to prevent hindering inquiries, investigations, or judicial proceedings, avoid causing harm to the prevention, detection, investigation, and prosecution of criminal offenses or to the enforcement of criminal sanctions, protect public safety, protect National Security, and/or protect the rights and freedoms of other persons.

(...) 5. The data will be retained for the time necessary to fulfill the purpose for which they were collected and to determine the possible responsibilities that may arise from that purpose and the processing of the data.

6. In the attached document, information related to the processing is sent in accordance with the provisions of Article 21 of Organic Law 7/2021 of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions, as well as data related to the exercise of rights.

DATA OF THE PROCESSING

PROCESSING

INTERVENTION REPORTS: DOCUMENTED AND COMPUTERIZED POLICE ACTIONS.

DATA CONTROLLER: OPERATIONAL DEPUTY DIRECTORATE.

DESCRIPTION OF THE PROCESSING: Registration, processing, and organization of police interest

data collected during the interventions of the National Police, attending to the functions of crime prevention and investigation that are legally assigned.

CATEGORIES OF INTERESTED PARTIES: Members of the State Security Forces and Corps, identified individuals, offenders, wanted persons, detainees, non-detainees under investigation, complainants, victims, affected parties, witnesses, minors, and incapacitated persons in situations of risk.

DESCRIPTION OF THE CATEGORIES OF PERSONAL DATA: Name, Surname, Date and place of birth, Affiliation, Identity document, Address, Phone, Email, Identifying data of numbered objects.

DATA TRANSFER: Judicial Authority, Public Prosecutor's Office, and Security Forces and Corps when such transfers are necessary for the fulfillment of coordination and cooperation duties, as provided for in Articles 3 and 45 of Organic Law 2/1986, of March 13. International police collaboration bodies in accordance with treaties and international agreements signed by the Kingdom of Spain.

RETENTION PERIODS: The data will be retained for the time necessary to fulfill the purpose for which they were collected and to determine the possible responsibilities that may arise from that purpose and the processing of the data. The provisions of the regulations on archives and documentation will apply.

SECURITY MEASURES: ENS Type II Measures. Access to the web application is performed through identification with a corporate professional card or DNle. Only by entering the PIN assigned to the support used, the DNI number and the name and surname of the person attempting to access can be captured. Once these are captured...

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Data is accessed in the application with the user level assigned by the system administrator.

Level MEDIUM

LEGAL BASIS EU Directive 680/2016. Processing necessary for the execution of functions for the prevention, detection, investigation, and sanctioning of both criminal and administrative infringements, as well as the protection and prevention of threats against public safety entrusted to the National Police; Articles 11 and 12 of LO 2/86 of March 13 on Security Forces and Bodies; LO 4/2015 of March 30, on the Protection of Citizen Security; LECRIM.

DATA RELATING TO THE EXERCISE OF RIGHTS

DATA PROCESSING RESPONSIBLE

NAME OPERATIONAL DEPUTY DIRECTORATE

ADDRESS RAFAEL CALVO STREET, 33, 28010, MADRID

E-MAIL

PHONE

DATA PROTECTION OFFICER

NAME Data Protection Officer of the National Police

ORGANIZATION General Directorate of the Police

ADDRESS C/ Rafael Calvo 33, Madrid 28010

E-MAIL policianacional.dep@policia.es

SUPERVISORY AUTHORITY

NAME Spanish Agency for Data Protection

ADDRESS C/ Jorge Juan, 6. 28001

WEB <http://www.aepd.es>

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the party being complained about, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The party being complained about, on October 23, 2024, submitted to this Agency a document providing the following documentation:

- Response sent to the complainant dated August 20, 2024, (already provided by the complainant

along with the complaint).

- Official letter from the Strategic Planning and Coordination Unit of the General Directorate of the Police dated October 23, 2024, addressed to the Central Data Protection Office, indicating: "In relation to your official letter dated October 17, 2024, through which the complaint presented by A.A.A., holder of DNI ***NIF.1, was forwarded to this Unit, before the Spanish Agency for Data Protection, regarding the right of access exercised by the interested party, the following is communicated:

On August 8, 2024, a request for access to personal data related to the treatment "INTERVENTION REPORTS" was received by the Strategic Planning and Coordination Unit, made by A.A.A., concerning a police intervention that occurred on the day (...) in ***LOCALITY.1. This request was responded to the interested party on 21/08/2024, through a document in which access to said treatment was granted.

In this document, the intervention report number related to the police intervention referred to by the interested party in their request is indicated, which contains their personal data. Likewise, in the annex of this document, the category of personal data collected in this treatment is informed (Name, Surname, Date and place of birth, Parentage, Identity document, Address, Phone, Email, Identifying data of numbered objects), as well as the categories of recipients (Judicial Authority, Public Prosecutor's Office, Security Forces and Bodies, and International Police Cooperation Agencies), all in accordance with Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and execution of criminal sanctions.

Based on the above, the aforementioned law, when regulating the exercise of the right of access of the interested party to their personal data, establishes in Articles 21 and 22 the information that must be made available to the interested party, not authorizing the same to provide the complete content of the documents in which their personal data is found.

Attached is the document related to the request of the interested party that has been initiated:

- Response to the exercise of the right of access in application INTERVENTION REPORT dated 20/08/2024."

- Official letter dated October 23, 2024, from the party being complained about to this Agency indicating that

"On October 16, 2024, this National Central Office forwarded the circumstances indicated in your notification to the Operational Deputy Directorate - Strategic Planning and Coordination Unit, as responsible for the treatment of Intervention Reports, in accordance with the Inventory of Treatment Activities of the Ministry of the Interior, urging that a report be sent regarding the response made to the complainant, in order to proceed to respond to that AEPD.

On October 23, 2024, the aforementioned Unit sent a file (attached to the present) to this National Central Office communicating the actions taken."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on November 4, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent the opportunity for a hearing, so that within a period of ten working days, they could present any arguments they deemed appropriate.

There is no record that the respondent has submitted any response to this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the functions assigned to data protection authorities by Article 49 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021), and as established in Article 48 of the aforementioned LO 7/2021 and according to Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, Article 52 "Applicable regime to the procedures processed before the data protection authorities" of LO 7/2021 establishes that:

"1. In the event that the interested parties consider that the processing of personal data has infringed the provisions of this Organic Law or that their request to exercise the rights recognized in Articles 21, 22, and 23 has not been addressed, they shall have the right to file a complaint with the data protection authority.

2. Such complaints shall be processed by the competent data protection authority in accordance with the procedure established in Title VIII of Organic Law 3/2018, of December 5, and, where applicable, by the legislation of the Autonomous Communities that is applicable. The general rules on administrative procedures and the legal regime of the public sector shall apply subsidiarily."

II

Preliminary Issues

Following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on November 4, 2024, for the purposes provided for in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 21, 22, and 23 of LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an agreement of admission for processing, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

III

On the Provisions of LO 7/2021

The aforementioned Organic Law 7/2021 establishes:

"Article 20. General conditions for the exercise of the rights of the interested parties.

"1. The data controller must provide the interested party, in a concise, intelligible, easily accessible manner, and in clear and simple language for all individuals, including those with disabilities, all the information contemplated in Article 21, as well as that derived from Articles 14, 22 to 26, and 39.

In addition, the data controller must take the necessary measures to ensure that the interested party can exercise their rights referred to in Articles 14 and 22 to 26. (...)"

Article 21. Information that must be made available to the interested party.

"1. The data controller shall make available to the interested party, at a minimum, the following information:

a) The identification of the data controller and their contact details.

- b) The contact details of the data protection officer, if applicable.
- c) The purposes of the processing to which the personal data are intended.
- d) The right to file a complaint with the competent data protection authority and their contact details.
- e) The right to request from the data controller access to the personal data concerning the interested party and their rectification, deletion, or limitation of processing."

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2. In addition to the information referred to in paragraph 1, taking into account the circumstances of the specific case, the data controller shall provide the data subject with the following additional information to enable the exercise of their rights:

- a) The legal basis for the processing.
- b) The period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period.
- c) The categories of recipients of the personal data, where applicable, in particular, those established in countries that are not members of the European Union or international organizations.
- d) Any other information necessary, especially when the personal data have been collected without the knowledge of the data subject."

Article 22. Right of access of the data subject to their personal data.

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed. If the processing is confirmed, the data subject shall have the right to access such personal data, as well as the following information:

- a) The purposes and the legal basis for the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been disclosed, in particular, the recipients established in countries that are not members of the European Union or international organizations.
- d) The retention period for the personal data, where possible, or, if not, the criteria used to determine that period.
- e) The existence of the right to request from the data controller the rectification or erasure of personal data concerning the data subject or the restriction of their processing.
- f) The right to lodge a complaint with the competent data protection authority and their contact details.
- g) The communication of the personal data being processed, as well as any available information about their origin, without disclosing the identity of any natural person, especially in the case of confidential sources.

2. (...)

3. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure system that permanently guarantees access to all of their personal data. The notification informing the data subject of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in paragraph 1, the data subject shall have the right to request it.

4. (...)"

Article 24. Restrictions on the rights of information, access, rectification, erasure of personal data, and limitation of their processing.

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"1. The data controller may postpone, limit, or omit the information referred to in Article 21.2, as well as deny, in whole or in part, requests for the exercise of the rights contemplated in Articles 22 and 23, provided that, taking into account the fundamental rights and legitimate interests of the affected person, it is necessary and proportional for the achievement of the following purposes:

- a) Preventing the obstruction of inquiries, investigations, or judicial proceedings.

- b) Avoiding harm to the prevention, detection, investigation, and prosecution of criminal offenses or to the enforcement of criminal sanctions.
- c) Protecting public safety.
- d) Protecting national security.
- e) Protecting the rights and freedoms of other persons.

2. In the event of a restriction of the rights contemplated in Articles 22 and 23, the data controller shall inform the affected party in writing without undue delay, and in any case, within one month from the time they become aware of such restriction, of the reasons for it, as well as the possibilities of filing a complaint with the data protection authority, without prejudice to any other judicial actions that may be exercised under the provisions of this Organic Law.

The reasons for the restriction may be omitted or replaced with a neutral wording when the disclosure of the reasons for the restriction could jeopardize the purposes referred to in the previous paragraph.

3. The data controller shall document the factual or legal grounds on which the decision to deny the exercise of the right of access is based. This information shall be made available to the data protection authorities.” (The underlining is from the AEPD)

IV

Conclusion

In the present case, it has been established that the complainant requested access to their personal data in the file “Intervention Parts,” and that the respondent replied by providing their name and surname, ID number, as well as the record ***REFERENCE.1, from the Citizen Attention Group of ***LOCALITY.1. They inform them about the data controller, the description of the processing, categories of data subjects, description of the categories of personal data, data transfers, retention periods, security measures, and legal basis. They indicate that, “(...) in accordance with the provisions of Article 24 of Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions, the data controller may agree to restrict the right of access, rectification, deletion of personal data, or limitation of its processing, in those cases where it is necessary and proportional, in order to prevent the obstruction of inquiries, investigations, or judicial proceedings, and to avoid harm to the prevention, detection, investigation, and prosecution of criminal offenses or to the enforcement of sanctions.”

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criminal matters, protect public safety, protect National Security and/or protect the rights and freedoms of others.”

During the instruction of this procedure, the respondent provided this Agency with an Official Letter from the Strategic Planning and Coordination Unit of the General Directorate of the Police dated October 23, 2024, addressed to the Central Office of Data Protection, in which it is stated that:

"In said document, the intervention report number related to the police intervention to which the interested party referred in their request is indicated, and in which their personal data is recorded. Likewise, in the annex of said document, the category of personal data collected in said processing is reported (Name, Surname, Date and place of birth, Affiliation, Identity document, Address, Phone, Email, Identifying data of numbered objects), as well as the categories of recipients (Judicial Authority, Public Prosecutor's Office, Security Forces and Bodies, and International Police Cooperation Agencies), all in accordance with Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions.

Based on the above, the aforementioned law, in regulating the exercise of the right of access of the interested party to their personal data, establishes in articles 21 and 22 the information that must be made available to the interested party, not authorizing the same to provide the full content of the documents in which their personal data is found."

In this case, from the examination of the documentation provided by the parties, there is no documentary evidence that allows considering that the respondent provided the claimant with the requested data or denied them with justification in accordance with the provisions of Organic Law 7/2021.

Consequently, it is appropriate to uphold the complaint filed.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of article 15 of the GDPR and article 22 of Organic Law 7/2021 have been infringed and to urge the GENERAL DIRECTORATE OF THE POLICE with NIF S2816015H, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

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SECOND: NOTIFY this resolution to A.A.A. and to the GENERAL DIRECTORATE OF THE POLICE. In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1381-090823
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